CHIESI USA, INC. et al v. ZYDUS LIFESCIENCES GLOBAL FZE et al

Plaintiff:	CHIESI FARMACEUTICI S.P.A. and CHIESI USA, INC.
Defendant:	ZYDUS PHARMACEUTICALS (USA) INC. and ZYDUS LIFESCIENCES GLOBAL FZE
Case Number:	3:2026cv14339
Filed:	November 4, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Rukhsanah L. Singh
Referring Judge:	Zahid N. Quraishi
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
November 4, 2026	**Filing 2** Corporate Disclosure Statement by CHIESI FARMACEUTICI S.P.A., CHIESI USA, INC. identifying Valline S.r.l. as Corporate Parent.. (LIZZA, CHARLES)
November 4, 2026	**Filing 1** COMPLAINT against ZYDUS LIFESCIENCES GLOBAL FZE, ZYDUS PHARMACEUTICALS (USA) INC. (Filing and Admin fee $ 405 receipt number ANJDC-18157231) , Related Case Selected, filed by CHIESI FARMACEUTICI S.P.A., CHIESI USA, INC.. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Exhibit C, #4 Civil Cover Sheet)(LIZZA, CHARLES)
November 4, 2026	Judge Zahid N. Quraishi and Magistrate Judge Rukhsanah L. Singh added. (amk)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Chiesi USA, Inc. (Delaware) and Chiesi Farmaceutici S.p.A. (Italy)
  - Defendant: Zydus Lifesciences Global FZE (United Arab Emirates) and Zydus Pharmaceuticals (USA) Inc. (New Jersey)
  - Plaintiff's Counsel: Saul Ewing LLP
- Case Identification: 3:26-cv-14339, D.N.J., 11/04/2026
- Venue Allegations: Venue is alleged to be proper as to Zydus Pharmaceuticals (USA) Inc. because it is incorporated and maintains its principal place of business in New Jersey. Venue is alleged as to Zydus Lifesciences Global FZE on the basis that it is a foreign entity that may be sued in any judicial district.
- Core Dispute: Plaintiff alleges that Defendant's submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of Plaintiff's CLEVIPREX® injectable emulsion constitutes an act of infringement of three patents covering stable, antimicrobial pharmaceutical formulations.
- Technical Context: The technology relates to oil-in-water emulsion formulations for the drug clevidipine, an intravenous antihypertensive agent, designed to be resistant to microbial growth and physically stable.
- Key Procedural History: This action was initiated under the Hatch-Waxman Act following Defendants' submission of ANDA No. 219831 and a subsequent Paragraph IV Notice Letter asserting that the patents-in-suit are invalid, unenforceable, and/or not infringed. The complaint notes that the matter is related to a prior, closed case involving the same reference drug and two of the same patents.

Case Timeline

Date	Event
2010-10-12	Earliest Priority Date for '676, '537, and '490 Patents
2014-02-25	'676 Patent Issued
2018-07-03	'537 Patent Issued
2021-08-31	'490 Patent Issued

2026-09-18	Zydus Received FDA's Paragraph IV Acknowledgment Letter
2026-09-22	Zydus Sent Paragraph IV Notice Letter
2026-11-04	Complaint Filed
2031-10-10	Stated Expiration Date for Patents-in-Suit

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,658,676 - "Clevidipine Emulsion Formulations Containing Antimicrobial Agents"

- Patent Identification: U.S. Patent No. 8,658,676, *"Clevidipine Emulsion Formulations Containing Antimicrobial Agents,"* issued February 25, 2014. Compl. ¶27

The Invention Explained

- Problem Addressed: The patent addresses the risk of microbial contamination in oil-in-water emulsions of clevidipine, such as CLEVIPREX®. These formulations contain soybean oil and egg yolk phospholipids, which can support the growth of microorganisms. This risk necessitates strict aseptic handling procedures and requires that vials be discarded four hours after opening, creating a burden for healthcare providers and leading to drug wastage. ’676 Patent, col. 1:42-59
- The Patented Solution: The invention is a stable clevidipine emulsion that includes an antimicrobial agent, specifically a chelating agent such as disodium edetate (EDTA), to inhibit microbial growth in the event of accidental extrinsic contamination. ’676 Patent, col. 2:1-12 ’676 Patent, abstract This solution aims to extend the safe in-use time of the product beyond the standard four hours.
- Technical Importance: By providing a formulation with greater antimicrobial properties, the invention sought to enhance patient safety, reduce the handling burden on healthcare staff in critical care settings, and minimize costly drug wastage. ’676 Patent, col. 1:50-59

Key Claims at a Glance

- The complaint asserts infringement of "one or more claims" of the ’676 patent Compl. ¶44 Independent claim 1 is representative and its essential elements include:

    - A pharmaceutical formulation comprising (a) an effective amount of clevidipine, or a pharmaceutically acceptable salt or ester;
    - (b) an antimicrobial agent, EDTA, present at about 0.001 to about 1.5% w/v;
    - (c) a lipid;
    - (d) an emulsifier;
    - (e) a tonicity modifier; and
    - (f) water;
    - wherein the formulation is resistant to microbial growth.
- The complaint does not identify specific dependent claims but reserves the right to assert them.

U.S. Patent No. 10,010,537 - "Clevidipine Emulsion Formulations Containing Antimicrobial Agents"

- Patent Identification: U.S. Patent No. 10,010,537, *"Clevidipine Emulsion Formulations Containing Antimicrobial Agents,"* issued July 3, 2018. Compl. ¶28

The Invention Explained

- Problem Addressed: Like the ’676 patent, the ’537 patent addresses the problem of microbial growth in clevidipine emulsions. ’537 Patent, col. 1:38-44 It also implicitly addresses the technical challenge of maintaining the physical stability of the emulsion (e.g., preventing oil droplets from coalescing) when adding new components like antimicrobial agents, which can decrease the emulsion's zeta potential. ’537 Patent, col. 11:65-col. 12:10
- The Patented Solution: The patent claims specific clevidipine formulations that achieve both antimicrobial resistance and physical stability. It discloses formulations comprising clevidipine, EDTA, soybean oil, egg yolk phospholipids, and glycerin. ’537 Patent, abstract The specification further describes formulations including a co-emulsifier like oleic acid, which was found to unexpectedly increase the zeta potential and thus improve the emulsion's physical stability. ’537 Patent, col. 12:50-57
- Technical Importance: This invention provides a specific, optimized formulation that is not only safer from a microbiological perspective but is also more physically robust, a critical attribute for parenteral drug products. ’537 Patent, col. 11:65-col. 12:10

Key Claims at a Glance

- The complaint asserts infringement of "one or more claims" of the ’537 patent Compl. ¶52 Independent claim 1 is representative and its essential elements include:
    - A pharmaceutical formulation comprising (a) clevidipine butyrate, present at about 0.01 to about 1% w/v;
    - (b) EDTA, present at about 0.001 to about 0.1% w/v;

    - (c) soybean oil, present at about 4 to about 30% w/v;
    - (d) purified egg yolk phospholipids, present at about 0.2 to about 2% w/v;
    - (e) glycerin, present at about 2 to about 3% w/v; and
    - (f) water up to 100%.
- The complaint does not identify specific dependent claims but reserves the right to assert them.

U.S. Patent No. 11,103,490 - "Clevidipine Emulsion Formulations Containing Antimicrobial Agents" (Multi-Patent Capsule)

- Patent Identification: U.S. Patent No. 11,103,490, *"Clevidipine Emulsion Formulations Containing Antimicrobial Agents,"* issued August 31, 2021. Compl. ¶29
- Technology Synopsis: This patent, part of the same family, continues to refine the formulation for a microbially resistant and stable clevidipine emulsion. The invention claims a specific formulation comprising clevidipine, an antimicrobial agent (EDTA), a lipid, an emulsifier, a tonicity modifier, and a co-emulsifier (oleic acid), which possesses a specific negative zeta potential and pH. ’490 Patent, claim 1 This indicates a focus on achieving a particular electrochemical property (zeta potential) to ensure long-term physical stability in combination with the antimicrobial benefit.
- Asserted Claims: The complaint asserts infringement of "one or more claims" Compl. ¶60 Independent claims 1, 6, and 7 are representative.
- Accused Features: The complaint alleges that Zydus's proposed generic clevidipine injectable emulsion, as described in its ANDA, will infringe the patent. Compl. ¶33 Compl. ¶60

III. The Accused Instrumentality

Product Identification

- The accused instrumentality is "Zydus's ANDA Product," a proposed generic version of CLEVIPREX® (clevidipine) injectable emulsion in 25 mg/50 mL and 50 mg/100 mL presentations (0.5 mg/mL). Compl. ¶33 Compl. ¶34

Functionality and Market Context

- The product is an oil-in-water emulsion intended for intravenous administration for the reduction of blood pressure in hospital settings. Compl. ¶26 As an ANDA product, it is intended to be a generic equivalent to the reference listed drug, CLEVIPREX®. Compl. ¶34 The complaint alleges that the defendants are part of a major generic pharmaceutical

business, positioning the ANDA product as a significant commercial competitor upon potential FDA approval. Compl. ¶11 Compl. ¶15

No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint alleges on information and belief that Zydus's ANDA Product meets each limitation of at least one claim of each patent-in-suit, either literally or under the doctrine of equivalents Compl. ¶40 The complaint does not provide a detailed claim chart.

’676 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
(a) an effective amount of clevidipine, or a pharmaceutically acceptable salt or ester	The formulation described in Zydus’s ANDA allegedly contains an effective amount of clevidipine.	¶40	col. 3:52-64
(b) an antimicrobial agent, EDTA, present at about 0.001 to about 1.5% w/v	The Zydus ANDA Product is alleged to contain EDTA within the claimed concentration range.	¶40	col. 5:40-49
(c) a lipid	The Zydus ANDA Product is alleged to contain a lipid.	¶40	col. 6:10-26
(d) an emulsifier	The Zydus ANDA Product is alleged to	¶40	col. 6:27-40

	contain an emulsifier.		
(e) a tonicity modifier	The Zydus ANDA Product is alleged to contain a tonicity modifier.	¶40	col. 6:64-col. 7:10
(f) water	The Zydus ANDA Product is alleged to be an aqueous formulation.	¶40	col. 7:11-16
wherein the formulation is resistant to microbial growth	The Zydus ANDA Product is alleged to be resistant to microbial growth as defined by the patent.	¶40	col. 8:1-17

’537 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
(a) clevidipine butyrate, present at about 0.01 to about 1% w/v	The Zydus ANDA Product is alleged to contain clevidipine butyrate within the claimed concentration range.	¶40	col. 3:52-65
(b) EDTA, present at about 0.001 to about 0.1% w/v	The Zydus ANDA Product is alleged to contain EDTA within	¶40	col. 5:40-49

	the narrower claimed concentration range.		
(c) soybean oil, present at about 4 to about 30% w/v	The Zydus ANDA Product is alleged to contain soybean oil within the claimed concentration range.	¶40	col. 6:10-18
(d) purified egg yolk phospholipids, present at about 0.2 to about 2% w/v	The Zydus ANDA Product is alleged to contain purified egg yolk phospholipids within the claimed concentration range.	¶40	col. 6:27-35
(e) glycerin, present at about 2 to about 3% w/v	The Zydus ANDA Product is alleged to contain glycerin within the claimed concentration range.	¶40	col. 7:1-5
(f) water up to 100%	The Zydus ANDA Product is alleged to be an aqueous formulation.	¶40	col. 7:11-16

Identified Points of Contention

- Scope Questions: A central question will be whether the specific formulation detailed in Zydus's confidential ANDA falls within the scope of the asserted claims. This will involve interpreting the boundaries of the claimed concentration ranges, particularly the term "about."

- Technical Questions: A key factual dispute will be whether the Zydus ANDA Product meets the functional limitation of being "resistant to microbial growth" as defined in the ’676 patent. The patent provides a specific quantitative standard ("no more than 1 log [fold] increase in viable colonies over a 24-hour period"), which may become a focal point for testing and expert testimony. ’676 Patent, col. 4:12-15 ’676 Patent, col. 9:40-44

V. Key Claim Terms for Construction

"resistant to microbial growth" ’676 Patent, claim 1

- Context and Importance: This functional limitation is a core element of the primary independent claim of the ’676 patent. Proving that the accused product meets this requirement is essential for a finding of literal infringement. Practitioners may focus on this term because the ’676 patent supplies a specific quantitative benchmark for microbial resistance, making the construction of this limitation potentially dispositive of literal infringement.
- Intrinsic Evidence for Interpretation:
- Evidence for a Broader Interpretation: The complaint does not provide a basis for this analysis.
- Evidence for a Narrower Interpretation: The specification provides a precise, quantitative definition: "In the event of accidental contamination, the pharmaceutical formulation will retard the growth of microorganisms to no more than 1 log within at least about 24 hours." ’676 Patent, col. 4:11-15 This explicit definition in the specification may support a narrow construction that requires meeting this specific performance benchmark.

"about" ’537 Patent, claim 1

- Context and Importance: This term modifies every concentration range in the asserted claims. Its interpretation will determine the literal boundaries of the claims and is a common point of dispute in pharmaceutical patent cases. Practitioners may focus on this term because even a small deviation in the accused formulation's composition from the recited values could be dispositive of non-infringement.
- Evidence for a Broader Interpretation: The ’537 patent’s intrinsic record supplies no express definition of "about." Parties arguing for a broader scope may contend that a person of ordinary skill in the art would read the term to encompass normal manufacturing and measurement variability.
- Evidence for a Narrower Interpretation: The patent’s examples provide formulations with exact concentrations (e.g., EDTA at 0.005%, glycerin at 2.25%). ’537 Patent, Table 1 A party

could argue that these precise examples suggest the inventors intended the term "about" to cover only very minor deviations.

VI. Other Allegations

- Indirect Infringement: The complaint alleges active inducement of infringement under 35 U.S.C. § 271(b). The factual basis alleged is that the proposed labeling for Zydus's ANDA Product will instruct and encourage physicians and other healthcare providers to use the product in a manner that directly infringes one or more claims of the patents-in-suit. Compl. ¶46 Compl. ¶54 Compl. ¶62
- Willful Infringement: The complaint alleges that Zydus has had knowledge of the patents-in-suit since at least the date it submitted its Paragraph IV Certifications to the FDA. Compl. ¶41 Based on this alleged knowledge, the prayer for relief seeks a judgment that the infringement is willful and an award of enhanced damages. Compl., Prayer for Relief ¶F

VII. Analyst’s Conclusion: Key Questions for the Case

1. A question of definitional scope: The dispute may center on the construction of key claim terms. Specifically, can Zydus's formulation be proven to be "resistant to microbial growth" under the specific quantitative definition provided in the ’676 patent’s specification? Furthermore, how broadly will the court construe the term "about," which defines the boundaries of every claimed concentration range?
2. An evidentiary question of composition: While this is a pleading-stage analysis, the core of this Hatch-Waxman case will be a factual comparison. Does the specific formulation detailed in Zydus’s confidential ANDA contain all the elements—including clevidipine, EDTA, a lipid, and an emulsifier—in the concentrations required by the asserted claims of the patent family?
3. A question of patent portfolio strategy: The patents-in-suit represent an evolution, from a broader concept in the ’676 patent to more specific, optimized formulations in the ’537 and ’490 patents (e.g., adding oleic acid). A key issue will be whether Zydus’s generic product infringes not only the foundational patent but also the later, narrower patents directed to more specific, optimized formulations.

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UNITED STATES DISTRICT COURT
DISCTRICT OF NEW JERSEY

CHIESI USA, INC. and CHIESI FARMACEUTICI S.P.A.,

Plaintiffs,

v.

ZYDUS LIFESCIENCES GLOBAL FZE and ZYDUS PHARMACEUTILCALS (USA) INC.,

Defendants.

Civil Action No._____

COMPLANT FOR PATENT INFRINGEMENT

(Filed Electronically)

Plaintiffs Chiesi USA, Inc. ("Chiesi USA") and Chiesi Farmaceutici S.p.A. ("Chiesi Farmaceutici") (collectively, "Chiesi" or "Plaintiffs"), by their undersigned attorneys, for their Complaint against Defendants Zydus Lifesciences Global FZE ("Zydus FZE") and Zydus Pharmaceuticals (USA) Inc. ("Zydus USA") (collectively, "Zydus" or "Defendants"), allege as follows:

Nature of the Action

1. This is a civil action for infringement of United States Patent Nos. 8,658,676 (the "'676 patent"), 10,010,537 (the "'537 patent"), and 11,103,490 (the "'490 patent") (collectively, the "Patents-in-Suit") under the patent laws of the United States, 35 U.S.C. § 100 *et seq.* This action arises from Zydus's submission of Abbreviated New Drug Application ("ANDA")

No. 219831 (“Zydus’s ANDA”) to the United States Food and Drug Administration (“FDA”) seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of Plaintiffs’ CLEVIPREX® (clevidipine) injectable emulsion prior to the expiration of the Patents-in-Suit. Copies of the ’676, ’537, and ’490 patents are attached as Exhibits A, B, and C, respectively.

The Parties

2. Chiesi USA is a corporation organized and existing under the laws of the State of Delaware, having its principal place of business at 175 Regency Woods Place, Suite 600, Cary, North Carolina 27518. Chiesi USA is a wholly owned subsidiary of Chiesi Farmaceutici.

3. Chiesi USA is the holder of New Drug Application (“NDA”) No. 022156, which FDA approved for the manufacture and sale of CLEVIPREX® (clevidipine) injectable emulsion.

4. Chiesi Farmaceutici is a corporation organized and existing under the laws of Italy, having its principal place of business at Via Palermo, 26/A, 43122 Parma, Italy.

5. Chiesi Farmaceutici is the owner and assignee of all right, title, and interest in each of the Patents-in-Suit.

6. On information and belief, Zydus FZE is a company organized and existing under the laws of the United Arab Emirates, having its principal place of business at FZJO B2601, Jebel Ali Free Zone, Dubai, United Arab Emirates.

7. On information and belief, Zydus FZE was incorporated in the Jebel Ali Free Zone in February 2024 as a wholly owned subsidiary of Zydus Lifesciences Limited (“Zydus Lifesciences”), a corporation organized and existing under the laws of India, having its principal place of business at Zydus Corporate Park, Scheme No. 63, Survey No. 536, Khoraj (Gandhinagar), Nr. Vaishnodevi Circle, S.G. Highway, Ahmedabad 382 481, India.

8. On information and belief, Zydus USA is a corporation organized and existing under the laws of the State of New Jersey, having its principal place of business at 73 Route 31 North, Pennington, New Jersey 08534.

9. On information and belief, Zydus USA is a wholly owned subsidiary of Zydus Lifesciences. The letterhead on which Zydus transmitted the Notice Letter (defined below) identifies Zydus USA as “[a] wholly owned subsidiary of Zydus Lifesciences Limited.”

10. On information and belief, Zydus FZE is in the business of, among other things, seeking FDA approval for and commercializing pharmaceutical products for sale in the United States. On information and belief, Zydus FZE has submitted ANDAs to FDA other than Zydus’s ANDA, including ANDAs that have been the subject of patent infringement actions in this Judicial District. See, e.g., *Shionogi Inc. v. Zydus Pharms. (USA) Inc.*, No. 26-6619 (D.N.J.); *Supernus Pharms., Inc. v. Zydus Lifesciences Global FZE*, No. 25-12188 (D.N.J.).

11. On information and belief, Zydus USA is in the business of, among other things, developing, manufacturing, importing, marketing, distributing, offering for sale, and selling generic pharmaceutical products throughout the United States, including in New Jersey. Zydus USA’s website states that Zydus is “a leading generic pharmaceutical company in the US” and that “[t]he company currently offers more than 500 SKUs to the US market.”

Zydus USA's website further states that "Zydus Pharmaceuticals (USA) Inc. is the US generic drug division of a much larger company known as Zydus Lifesciences."

12. On information and belief, Zydus USA acts as the U.S. agent for Zydus FZE with respect to Zydus's ANDA. The Notice Letter states that Zydus FZE provided notice of its Paragraph IV certifications "through Zydus Pharmaceuticals (USA) Inc.," identifies Zydus USA's Pennington, New Jersey address, and was signed by Zydus USA's Chief Legal Officer "[o]n behalf of Zydus Lifesciences Global FZE."

13. On information and belief, Zydus FZE and Zydus USA work in privity and/or in concert with one another, and with Zydus Lifesciences and its other subsidiaries, with respect to the regulatory approval, manufacture, importation, marketing, offer for sale, sale, and distribution of generic pharmaceutical products throughout the United States, including in New Jersey. On information and belief, Zydus USA acts at the direction, and for the benefit, of Zydus Lifesciences and its subsidiaries, including Zydus FZE, and Defendants act, operate, and/or hold themselves out to the public as a single integrated business.

14. On information and belief, Zydus FZE and Zydus USA each actively participated in the preparation and submission of Zydus's ANDA, and, if Zydus's ANDA is approved, Zydus FZE and Zydus USA will work in privity and/or in concert with one another to manufacture, import, market, distribute, offer for sale, and sell Zydus's ANDA Product (defined below) throughout the United States, including in New Jersey.

15. On information and belief, Defendants derive substantial revenue, directly or indirectly, from the sale of generic pharmaceutical products throughout the United States, including in New Jersey. Zydus Lifesciences' Integrated Annual Report (2025-26) reports that Zydus is the third-largest generic company in the United States by prescription volume and identifies Zydus USA as a material subsidiary of Zydus Lifesciences.

Jurisdiction and Venue

16. This action arises under the patent laws of the United States, 35 U.S.C. § 100 *et seq.*, and this Court has jurisdiction over the subject matter of this action under 28 U.S.C. §§ 1331 and 1338(a).

17. This Court has personal jurisdiction over Zydus USA. On information and belief, Zydus USA is incorporated in New Jersey and maintains its principal place of business in New Jersey, and it is therefore at home in New Jersey. On information and belief, Zydus USA is registered with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID No. 0100915422, and is registered with the State of New Jersey's Department of Health as a drug manufacturer and wholesaler under Registration No. 5003171. On information and belief, Zydus USA has conducted, and continues to conduct, continuous and systematic business in this Judicial District.

18. This Court also has personal jurisdiction over Zydus USA because, on information and belief, Zydus USA, from New Jersey, participated in the preparation and submission of Zydus's ANDA, acted as Zydus FZE's U.S. agent with respect to Zydus's ANDA, and transmitted the Notice Letter to Chiesi, and because Zydus USA intends, upon approval of

Zydus's ANDA, to market, distribute, offer for sale, and sell Zydus's ANDA Product in New Jersey.

19. This Court has personal jurisdiction over Zydus FZE. On information and belief, Zydus FZE submitted Zydus's ANDA for the purpose of obtaining FDA approval to market Zydus's ANDA Product throughout the United States, including in New Jersey, and, upon approval, intends to market, distribute, and sell Zydus's ANDA Product in New Jersey, including through its affiliate Zydus USA, which is located in Pennington, New Jersey. The Notice Letter states that Zydus FZE provided notice of its Paragraph IV certifications "through Zydus Pharmaceuticals (USA) Inc.," identifies Zydus USA's Pennington, New Jersey address, and was signed by Zydus USA's Chief Legal Officer "[o]n behalf of Zydus Lifesciences Global FZE." On information and belief, Zydus USA acts as Zydus FZE's U.S. agent with respect to Zydus's ANDA, and acts at Zydus FZE's direction and for its benefit.

20. On information and belief, if Zydus's ANDA is approved, Zydus's ANDA Product will be marketed, distributed, offered for sale, and sold in New Jersey, prescribed by physicians practicing in New Jersey, and administered to patients in New Jersey, causing foreseeable harm and injury to Chiesi. Zydus's submission of Zydus's ANDA is an act of infringement under 35 U.S.C. § 271(e)(2) that will lead to that harm.

21. Zydus FZE and Zydus USA have each been sued in this Judicial District in prior patent infringement actions, have not contested personal jurisdiction in those actions, and have availed themselves of the legal protections of this Court, including by asserting counterclaims. See, e.g., *Shionogi Inc. v. Zydus Pharms. (USA) Inc.*, No. 26-6619 (D.N.J.); *Supernus Pharms., Inc. v. Zydus Lifesciences Global FZE*, No. 25-12188 (D.N.J.); *Chemocentryx, Inc. v. Zydus Pharms. (USA) Inc.*, No. 26-556 (D.N.J.); *AstraZeneca Pharms. LP v. Zydus Pharms. (USA) Inc.*, No. 24-10629 (D.N.J.).

22. Zydus USA has further availed itself of this Court by initiating litigation in this Judicial District. See, e.g., *Zydus Pharms. (USA) Inc. v. Novartis Pharms. Corp.*, No. 19-21259 (D.N.J.); *Zydus Pharms. (USA) Inc. v. Gilead Scis., Inc.*, No. 14-7080 (D.N.J.); *Zydus Pharms. (USA) Inc. v. Eli Lilly & Co.*, No. 10-5584 (D.N.J.).

23. In the alternative, this Court has personal jurisdiction over Zydus FZE under Federal Rule of Civil Procedure 4(k)(2) because (a) Chiesi's claims arise under federal law; (b) Zydus FZE is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Zydus FZE has sufficient contacts with the United States as a whole, including by preparing and submitting Zydus's ANDA and other ANDAs to FDA seeking approval to market generic pharmaceutical products throughout the United States, such that this Court's exercise of jurisdiction over Zydus FZE satisfies due process.

24. Venue is proper in this Judicial District as to Zydus USA under 28 U.S.C. § 1400(b). On information and belief, Zydus USA is incorporated in New Jersey and therefore resides in this Judicial District. *TC Heartland LLC v. Kraft Foods Grp. Brands LLC*, 581 U.S. 258, 262 (2017). In addition, on information and belief, Zydus USA maintains a regular and established place of business in this Judicial District at 73 Route 31 North, Pennington, New Jersey 08534, and has committed acts of infringement in this Judicial District, including acts related to the submission of Zydus's ANDA. See *Valeant Pharms. N. Am. LLC v. Mylan Pharms. Inc.*, 978 F.3d 1374, 1375 (Fed. Cir. 2020).

25. Venue is proper in this Judicial District as to Zydus FZE under 28 U.S.C. § 1391(c)(3) because, on information and belief, Zydus FZE is a foreign entity not resident in the United States, and may therefore be sued in any judicial district. *In re HTC Corp.*, 889 F.3d 1349, 1354–61 (Fed. Cir. 2018); *Brunette Mach. Works, Ltd. v. Kockum Indus., Inc.*, 406 U.S. 706, 714 (1972).

The CLEVIPREX® Drug Product

26. CLEVIPREX® (clevidipine) injectable emulsion is approved under NDA No. 022156 in 25 mg/50 mL and 50 mg/100 mL presentations. CLEVIPREX® is indicated for the reduction of blood pressure when oral therapy is not feasible or not desirable.

The Patents-in-Suit

27. The ’676 patent, titled “Clevidipine Emulsion Formulations Containing Antimicrobial Agents,” was duly and legally issued by the U.S. Patent and Trademark Office on February 25, 2014, to The Medicines Company on assignment from inventors Rajeshwar Motheram and Gregory Charles Williams. Subsequently, the Medicines Company assigned the ’676 patent to Chiesi Farmaceutici S.p.A.

28. The ’537 patent, titled “Clevidipine Emulsion Formulations Containing Antimicrobial Agents,” was duly and legally issued by the U.S. Patent and Trademark Office on July 3, 2018, to The Medicines Company on assignment from inventors Rajeshwar Motheram and Gregory Charles Williams. Subsequently, The Medicines Company assigned the ’537 patent to Chiesi Farmaceutici S.p.A.

29. The ’490 patent, titled “Clevidipine Emulsion Formulations Containing Antimicrobial Agents,” was duly and legally issued by the U.S. Patent and Trademark Office on August 31, 2021, to The Medicines Company on assignment from inventors Rajeshwar Motheram and Gregory Charles Williams. Subsequently, The Medicines Company assigned the ’490 patent to Chiesi Farmaceutici S.p.A.

30. Chiesi Farmaceutici is, and has been at all times since before the submission of Zydus’s ANDA, the owner of all right, title, and interest in each of the Patents-in-Suit.

31. The claims of the Patents-in-Suit cover, *inter alia*, pharmaceutical formulations comprising clevidipine.

32. Pursuant to 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, each of the Patents-in-Suit is listed in FDA’s publication *Approved Drug Products with Therapeutic Equivalence Evaluations* (the “Orange Book”) in connection with CLEVIPREX®. The Orange Book lists October 10, 2031, as the expiration date of each of the Patents-in-Suit.

Zydus’s ANDA and Notice Letter

33. On information and belief, Zydus submitted Zydus’s ANDA to FDA under 21 U.S.C. § 355(j), seeking approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of clevidipine injectable emulsion, 25 mg/50 mL (0.5 mg/mL) and 50 mg/100 mL (0.5 mg/mL) (“Zydus’s ANDA Product”), before the expiration of the Patents-in-Suit.

34. On information and belief, Zydus's ANDA identifies CLEVIPREX® as the reference listed drug for Zydus's ANDA Product, and Zydus's ANDA Product is intended to be a generic version of CLEVIPREX®.

35. By letter dated September 22, 2026 (the "Notice Letter"), Zydus FZE, through Zydus USA, notified Chiesi that Zydus's ANDA contains certifications under 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Paragraph IV Certifications") that, in Zydus's opinion, the Patents-in-Suit are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, or sale of Zydus's ANDA Product.

36. The Notice Letter purports to provide notice pursuant to 21 U.S.C. § 355(j)(2)(B)(iv) and 21 C.F.R. § 314.95. Zydus sent the Notice Letter by FedEx to Chiesi USA in Cary, North Carolina, and to Chiesi Farmaceutici in Parma, Italy. Chiesi received the Notice Letter on or about September 22, 2026.

37. The Notice Letter states that FDA has received Zydus's ANDA, that FDA has designated it ANDA No. 219831, and that Zydus received FDA's Paragraph IV acknowledgment letter for Zydus's ANDA on September 18, 2026.

38. The Notice Letter states that Zydus seeks approval of Zydus's ANDA to engage in the commercial manufacture, use, and/or sale of Zydus's ANDA Product before the expiration of the Patents-in-Suit.

39. Under 21 U.S.C. § 355(j)(2)(B)(iv)(II), a notice of Paragraph IV certification must "include a detailed statement of the factual and legal basis of the opinion of the applicant that the patent is invalid or will not be infringed." Under 21 C.F.R. § 314.95(c)(7), that detailed statement must include, "[f]or each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed," and, "[f]or each claim of a patent alleged to be invalid or unenforceable, a full and detailed explanation of the grounds supporting the allegation."

40. On information and belief, Zydus's ANDA Product meets each limitation of at least one claim of each of the Patents-in-Suit, either literally or under the doctrine of equivalents. To the extent that Zydus's ANDA Product does not literally meet any claim limitation, on information and belief it contains one or more ingredients that perform substantially the same function, in substantially the same way, to achieve substantially the same result as the claimed subject matter, and the differences between Zydus's ANDA Product and the claimed subject matter are insubstantial.

41. Zydus has had knowledge of each of the Patents-in-Suit since at least the date on which Zydus submitted its Paragraph IV Certifications to FDA, and in any event no later than the date of the Notice Letter.

42. This action is being commenced within forty-five days of Chiesi's receipt of the Notice Letter. See 21 U.S.C. § 355(j)(5)(B)(iii).

Count I: Infringement of U.S. Patent No. 8,658,676

43. Plaintiffs repeat and reallege each of the foregoing paragraphs as if fully set forth herein.

44. Zydus's submission of Zydus's ANDA with a Paragraph IV Certification to the '676 patent for the purpose of obtaining FDA approval to engage in the commercial manufacture, use,

offer for sale, sale, and/or importation of Zydus's ANDA Product before the expiration of the '676 patent constitutes infringement of one or more claims of the '676 patent, literally and/or under the doctrine of equivalents, under 35 U.S.C. § 271(e)(2)(A).

45. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will commercially manufacture, use, offer to sell, and/or sell Zydus's ANDA Product within the United States, and/or import Zydus's ANDA Product into the United States, and will thereby directly infringe one or more claims of the '676 patent, literally and/or under the doctrine of equivalents, under 35 U.S.C. § 271(a), unless enjoined by this Court.

46. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will actively induce infringement of one or more claims of the '676 patent under 35 U.S.C. § 271(b), unless enjoined by this Court. On information and belief, Zydus's ANDA Product, and the proposed labeling for it, will instruct and encourage physicians, pharmacists, other healthcare providers, and patients to use Zydus's ANDA Product, which use will directly infringe one or more claims of the '676 patent. On information and belief, Zydus will take these actions with knowledge of the '676 patent and with the specific intent to encourage that infringement.

47. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '676 patent under 35 U.S.C. § 271(c), unless enjoined by this Court. On information and belief, Zydus knows that Zydus's ANDA Product is especially made or adapted for use in a manner that infringes the '676 patent, and that Zydus's ANDA Product is not a staple article or commodity of commerce suitable for substantial noninfringing use.

48. There is a justiciable controversy between the parties hereto as to infringement of the '676 patent.

49. Plaintiffs will be substantially and irreparably harmed if Zydus's infringement of the '676 patent is not enjoined. Plaintiffs do not have an adequate remedy at law.

50. This case is exceptional, and Plaintiffs are entitled to an award of their reasonable attorneys' fees under 35 U.S.C. § 285.

Count II: Infringement of U.S. Patent No. 10,010,537

51. Plaintiffs repeat and reallege each of the foregoing paragraphs as if fully set forth herein.

52. Zydus's submission of Zydus's ANDA with a Paragraph IV Certification to the '537 patent for the purpose of obtaining FDA approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Zydus's ANDA Product before the expiration of the '537 patent constitutes infringement of one or more claims of the '537 patent, literally and/or under the doctrine of equivalents, under 35 U.S.C. § 271(e)(2)(A).

53. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will commercially manufacture, use, offer to sell, and/or sell Zydus's ANDA Product within the United States, and/or import Zydus's ANDA Product into the United States, and will thereby directly infringe one or more claims of the '537 patent, literally and/or under the doctrine of equivalents, under 35 U.S.C. § 271(a), unless enjoined by this Court.

54. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will actively induce infringement of one or more claims of the '537 patent under 35 U.S.C. § 271(b), unless enjoined by this Court. On information and belief, Zydus's ANDA Product, and the proposed labeling for it, will instruct and encourage physicians, pharmacists, other healthcare providers, and patients to use Zydus's ANDA Product, which use will directly infringe one or more claims of the '537 patent. On information and belief, Zydus will take these actions with knowledge of the '537 patent and with the specific intent to encourage that infringement.

55. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '537 patent under 35 U.S.C. § 271(c), unless enjoined by this Court. On information and belief, Zydus knows that Zydus's ANDA Product is especially made or adapted for use in a manner that infringes the '537 patent, and that Zydus's ANDA Product is not a staple article or commodity of commerce suitable for substantial noninfringing use.

56. There is a justiciable controversy between the parties hereto as to infringement of the '537 patent.

57. Plaintiffs will be substantially and irreparably harmed if Zydus's infringement of the '537 patent is not enjoined. Plaintiffs do not have an adequate remedy at law.

58. This case is exceptional, and Plaintiffs are entitled to an award of their reasonable attorneys' fees under 35 U.S.C. § 285.

Count III: Infringement of U.S. Patent No. 11,103,490

59. Plaintiffs repeat and reallege each of the foregoing paragraphs as if fully set forth herein.

60. Zydus's submission of Zydus's ANDA with a Paragraph IV Certification to the '490 patent for the purpose of obtaining FDA approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Zydus's ANDA Product before the expiration of the '490 patent constitutes infringement of one or more claims of the '490 patent, literally and/or under the doctrine of equivalents, under 35 U.S.C. § 271(e)(2)(A).

61. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will commercially manufacture, use, offer to sell, and/or sell Zydus's ANDA Product within the United States, and/or import Zydus's ANDA Product into the United States, and will thereby directly infringe one or more claims of the '490 patent, literally and/or under the doctrine of equivalents, under 35 U.S.C. § 271(a), unless enjoined by this Court.

62. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will actively induce infringement of one or more claims of the '490 patent under 35 U.S.C. § 271(b), unless enjoined by this Court. On information and belief, Zydus's ANDA Product, and the proposed labeling for it, will instruct and encourage physicians, pharmacists, other healthcare providers, and patients to use Zydus's ANDA Product, which use will directly infringe one or more claims of the '490 patent. On information and belief, Zydus will take these actions with knowledge of the '490 patent and with the specific intent to encourage that infringement.

63. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '490 patent under 35 U.S.C. § 271(c), unless enjoined

by this Court. On information and belief, Zydus knows that Zydus's ANDA Product is especially made or adapted for use in a manner that infringes the '490 patent, and that Zydus's ANDA Product is not a staple article or commodity of commerce suitable for substantial noninfringing use.

64. There is a justiciable controversy between the parties hereto as to infringement of the '490 patent.

65. Plaintiffs will be substantially and irreparably harmed if Zydus's infringement of the '490 patent is not enjoined. Plaintiffs do not have an adequate remedy at law.

66. This case is exceptional, and Plaintiffs are entitled to an award of their reasonable attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request that the Court enter judgment in their favor and against Defendants and grant the following relief:

(A) A Judgment that Zydus has infringed one or more claims of each of the Patents-in-Suit under 35 U.S.C. § 271(e)(2)(A) by submitting ANDA No. 219831 with Paragraph IV Certifications to FDA seeking approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Zydus's ANDA Product before the expiration of the Patents-in-Suit;

(B) A Judgment under 35 U.S.C. § 271(a), (b), and/or (c) that Zydus's commercial manufacture, use, offer for sale, sale, and/or importation of Zydus's ANDA Product before the expiration of the Patents-in-Suit would infringe, induce infringement of, and/or contribute to the infringement of one or more claims of each of the Patents-in-Suit;

(C) An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 219831 shall be a date that is not earlier than the latest expiration date of the Patents-in-Suit, including any extensions, adjustments, and additional periods of exclusivity to which Plaintiffs are or become entitled;

(D) An Order under 35 U.S.C. §§ 271(e)(4)(B) and 283 preliminarily and permanently enjoining Zydus, its officers, agents, servants, employees, and attorneys, and all other persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, or sale within the United States, or importation into the United States, of Zydus's ANDA Product, and from inducing or contributing to any of the foregoing, until the expiration of the Patents-in-Suit, including any extensions, adjustments, and additional periods of exclusivity to which Plaintiffs are or become entitled;

(E) If Zydus engages in the commercial manufacture, use, offer for sale, sale, and/or importation of Zydus's ANDA Product before the expiration of the Patents-in-Suit, a Judgment under 35 U.S.C. §§ 271(e)(4)(C) and 284 awarding Plaintiffs damages or other monetary relief, together with pre-judgment and post-judgment interest;

(F) If Zydus engages in the commercial manufacture, use, offer for sale, sale, and/or importation of Zydus's ANDA Product before the expiration of the Patents-in-Suit, a

Judgment that such infringement is willful and an award of enhanced damages under 35 U.S.C. § 284;

(G) A Judgment that the Patents-in-Suit are valid and enforceable;

(H) A Judgment that this is an exceptional case under 35 U.S.C. § 285 and an award to Plaintiffs of their reasonable attorneys' fees;

(I) An award to Plaintiffs of their costs and expenses in this action; and

(J) Such other and further relief as the Court may deem just and proper.

Dated: November 4, 2026

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CERTIFICATION PURSUANT TO L. CIV. R. 11.2 & 40.1

Pursuant to Local Civil Rules 11.2 and 40.1, Plaintiffs, by their undersigned counsel, hereby certify that this matter is related to *Chiesi USA, Inc. v. Aurobindo Pharma USA, Inc.*, No. 3:19-cv-18756 (ZNQ)(LHG) (D.N.J.) (case closed Aug. 30, 2022), which involved the same reference listed drug and two of the same patents.

I further certify that, to the best of my knowledge, the matter in controversy is not the subject of any other action pending in any court, or of any pending arbitration or administrative proceeding.

Dated: November 4, 2026

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